

22STCV22487 22STCV22487

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-07-17

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Case Number: 22STCV22487 Hearing Date: July 17, 2026 Dept: D

TENTATIVE RULING

Calendar: 10

Date: July 17, 2026

Case No: 22STCV22487 Trial Date: August 31, 2026

Case Name: Harnage v. Applebee's Restaurants, LLC, et al.

MOTION FOR SUMMARY JUDGMENT OR SUMMARY ADJUDICATION OF ISSUES

[CCP § 437c]

Moving Party: Defendant, Apple Mid Cal II LLC

Responding Party: Plaintiff, Jamie Harnage

RELIEF REQUESTED:

Grant summary judgment, or in the alternative, summary adjudication of issues, on Plaintiff's Complaint in favor of Defendant.

CAUSES OF ACTION: from Form Complaint

1) General Negligence

2) Premises Liability

SUMMARY OF FACTS:

The Complaint alleges that on July 31, 2020, Jamie Harnage ("Plaintiff") was an invited guest/paying patron at an Applebee's restaurant when an unsecured umbrella fell and struck Plaintiff causing severe physical, emotional and mental injuries.

ANALYSIS:

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party can show evidentiary support for a pleading or claim and, if not, to enable an order of summary dismissal without the need for trial. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.) CCP section 437c, subdivision (c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (Juge v. County of Sacramento (1993) 12 Cal.App.4th 59, 67, citing FPI Development, Inc. v. Nakashima (1991) 231 Cal. App. 3d 367, 381-82.)

As to each claim as framed by the complaint, the defendant or cross-defendant must satisfy the initial burden of proof by showing that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. (CCP, § 437c subd. (p)(2).) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. (CCP, § 437c subd. (p)(2).) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.)

"On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. [Citation.] Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial." (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839.) Further, "the trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. [Citation.] Nor may the trial court grant summary judgment based on the court's evaluation of credibility. [Citation.]" (Id. at p. 840; see also Weiss v. People ex rel. Department of Transportation (2020) 9 Cal.5th 840, 864 ["Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party"].)

First and Second Causes of Action, Premises Liability and Negligence

The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury. (Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1158.) California law requires landowners to maintain land in their possession and control in a reasonably safe condition. (Ann M. v. Pacific Plaza Shopping Center (1993) 6 Cal.4th 666, 674 [disapproved on other grounds in Reid v. Google, Inc. (2010) 50 Cal.4th 512, 527, fn. 5].)

"To impose liability for injuries suffered by an invitee due to [a] defective condition of the premises, the owner or occupier must have either actual or constructive knowledge of the dangerous condition or have been able by the exercise of ordinary care to discover the condition, which if known to him, he should realize as involving an unreasonable risk to invitees on his premises ...". (Ortega v. K-Mart Corp. (2001) 26 Cal.4th 1200, 1206.) Plaintiff has the burden of showing that the owner had notice of the defect in sufficient time to correct it. (Id. at 1205.)

Defendant Apple Mid Cal II ("Defendant") argues that Plaintiff cannot show that Defendant had actual or constructive notice of the allegedly dangerous condition, i.e. the unstable patio umbrella. Defendant asserts that there is no evidence of any prior or subsequent incidents involving the umbrellas on the outdoor patio falling or coming out of their bases. (Antonio Depo., pp. 86:4-6, 128:14-22, 132:21-25.) Defendant's General Manager Ramon Antonio ("Antonio") testified that he set up the umbrellas on the day of the incident. (Antonio Depo., p. 56:5-11.) He testified that the procedure for checking the umbrellas is to ensure they are in working order, that the base is in good condition, that each base has a weight on top of it, such as sandbags, and that each base has a screw that goes into the base of the umbrella. (Antonio Depo., pp. 60:16-64:10.) Antonio further testified that throughout the day he conducted multiple inspections of the outdoor patio area. (Antonio Depo., pp. 56:5-58:7.)

However, Defendant presents no evidence that the procedures for securing the umbrellas were adequate, or that Antonio, or any other employee, followed these procedures on the day of the incident. One could reasonably infer that the procedures were either inadequate or not properly executed, given that the umbrella ultimately became dislodged. The existence of a procedure for securing the outdoor umbrellas does not establish that the procedure was actually followed on the day of the incident or that the umbrellas were, in fact, properly secured. Moreover, it is not sufficient to merely argue that Plaintiff has no evidence of prior incidents. Defendant's burden on summary judgment is to present evidence, not simply to point out that Plaintiff does not possess needed evidence. (See Aguilar, *supra*, 25 Cal.4th at 854-855.) Accordingly, the Court does not find that Defendant has met its burden to satisfy the initial burden of proof.

Even if Defendant had met its initial burden, Plaintiff meets her burden to show that a triable issue of one or more material facts exists. Plaintiff presents evidence that the umbrellas in question were residential-grade umbrellas purchased from a discount store, not commercial-grade systems designed for outdoor dining. (Colburn Decl., ¶¶ 8-9.) Plaintiff presents evidence that the umbrellas were not installed with bolted bases or engineered anchoring systems. (Colburn Decl., ¶ 9.) Plaintiff's restaurant safety expert opines that by purchasing residential umbrellas and deploying them without proper securing hardware, Defendant acted below accepted industry standards of care. (Colburn Decl., ¶ 9.) Plaintiff further presents evidence that the forecast for the day of the incident predicted windy conditions and that wind gusts that afternoon ranged from 16 mph to 26 mph (Colburn Decl., ¶ 14; Burns Decl., ¶¶ 8-9.) The manufacturer's instruction manual for the subject umbrella warns users to close and put the umbrellas away on windy days. (Burns Decl., ¶ 11, Ex. 9.) Defendant's Person Most Knowledgeable and General Market Leader is unaware of any policy instructing restaurant staff to remove umbrellas on windy days or monitor weather conditions to prevent accidents from windblown umbrellas. (Lamaina Depo., pp. 84:7-18, 92:5-24, 93:9-14.)

This evidence is sufficient to create a triable issue of fact as to whether Defendant knew of, or should have known of, the dangerous condition and, through the exercise of ordinary care, could have discovered and corrected it. A reasonable trier of fact could determine that Defendant should have known that using umbrellas not intended for commercial use could create a dangerous condition. A reasonable trier of fact could also determine that Defendant had actual or constructive notice of the dangerous condition in light of the warnings in the instruction manual, the windy conditions on the day of the incident, and the foreseeable risk that an open outdoor umbrella could become dislodged from its base by a strong gust of wind.

In the reply, Defendant reasserts that Plaintiff cannot establish that Defendant had actual or constructive notice of a dangerous condition. Defendant argues that the General Manager conducted regular inspections of the outdoor patio area, thus demonstrating ordinary care and negating any inference of constructive notice. (Reply, pp. 5:18-6:27.) This argument is unavailing. "Where the dangerous or defective condition of the property which causes the injury has been created by reason of the negligence of the owner of the property or his employee acting within the scope of the employment, the owner of the property cannot be permitted to assert that he had no notice or knowledge of the defective or dangerous condition in an action by an invitee for injuries suffered by reason of the dangerous condition. Under such circumstances knowledge thereof is imputed to him." (Hatfield v. Levy Bros. (1941) 18 Cal.2d 798, 806.) A factfinder could reasonably infer that Defendant created a dangerous condition by using outdoor umbrellas not intended for commercial use and failing to use them in accordance with the manufacturer's instructions. It is foreseeable that wind could cause an open umbrella to dislodge from its base.

Thus, a triable issue of fact exists regarding whether Defendants maintained their property in a safe condition.

The motion is DENIED.

RULING:

Defendant Apple Mid Cal II LLC's Motion for Summary Judgment is DENIED.

Plaintiff's Evidentiary Objections to the Declaration of Diana M. Rivera, Exhibit F - Defendant's Responses to Plaintiff's Special Interrogatories:

Objection No. 1: SUSTAINED [improper use of responding party's discovery responses]

Defendant's Evidentiary Objections to the Declaration of Gary Colburn:

Objections Nos. 1-56: OVERRULED

Defendant's Evidentiary Objections to the Declaration of John Upton:

Objections Nos. 57-68, 70-72: OVERRULED

Objection No. 69: SUSTAINED [speculation]

Objections Nos. 105-113: OVERRULED

Defendant's Evidentiary Objections to the Declaration of Mark Burns:

Objection Nos. 73-94: OVERRULED

Objection No. 95: SUSTAINED [improper legal conclusion]

Defendant's Evidentiary Objections to the Declaration of Kevin Janison:

Objection Nos. 96-98, 101-: OVERRULED

Defendant's Evidentiary Objections to the Deposition of Estelle Harnage:

Objection No. 99, 102: OVERRULED

Defendant's Evidentiary Objections to the Deposition of Jamie Harnage:

Objection No. 100: OVERRULED

Defendant's Evidentiary Objections to the Deposition of Ramon Antonio:

Objection No. 103: OVERRULED

Defendant's Evidentiary Objections to the Deposition of Francis Xavier Lamaina:

Objection No. 104: OVERRULED

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

VIDEO APPEARANCES

If you wish to appear remotely on LACourtConnect, you may register by visiting www.lacourt.ca.gov to schedule a remote appearance. Please note that LACourtConnect offers free audio and video appearances. Department D is now requiring either live or VIDEO appearances, not audio appearances.